

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JANUARY 22, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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1. **MSP05-01409** **ESTATE OF ALICIA MARIA FREEMAN**
9:00 AM HEARING IN RE: STATUS ON RECEIPT OF FUNDS DEPOSITED IN A BLOCKED ACCOUNT

Need appearances to report status of depositing funds into a blocked account,
pursuant to 08/01/2024 minute order

Notes:

1. Order for Probate appointing Derrick Eaglin as successor personal representative of estate ordered all funds to be deposited into a blocked account.
2. Inventory and Appraisal filed 12-21-2005 lists only real property on hand at date of death.
3. Petition for Order Refusing to Order Distribution of Funds to Probate Advance LLC filed by Charles Brown, III is set for hearing 3-12-2026.

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- 2.** **P23-00095** **MATTER OF: GLADYS GREEN REVOCABLE TRUST**
9:00 AM ~~HEARING IN RE: DISMISSAL & OSC FOR JOY GREEN-ARMSTRONG~~
HEARING IN RE: TO COMPEL ACCOUNTING BY FORMER ATTORNEY IN FACT, TO COMPEL
ACCOUNTING, SUSPENSION OR REMOVAL, FOR DAMAGES, INTEREST & FEES FILED ON 01/13/23 BY
JOY GREEN-ARMSTRONG
- Need:
1. Appearances to report status, including mediation
 2. Evidence of written demand for accounting as required by PrC §17200(b)(7).
 3. Proposed Order
- Note:
- a. Beverly Green's Response filed 11/08/2023.
 - b. Motion For Rescheduling Trial date filed by Joy Green-Armstrong 10/14/25, is set for hearing 03/12/26.

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3. **P23-02173** **ESTATE OF: DONNA WITHROW**
9:00 AM HEARING IN RE: WAIVER OF ACCOUNT, REPORT OF ADMIN, AND PETITION FOR FINAL DISTRIBUTION
FILED ON 04/15/25 BY GWENN N. ALBERTSON

Petitioner still must do the following:

1. Appear at the hearing
2. File a Corrected Inventory and Appraisal with assets appraised by Probate Referee
3. File a verified declaration by petitioner to specify whether all charges for legal advertising, probate referee's services and costs of administration have been paid. LR 7.317

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4A. **P24-00395** **ESTATE OF: ELEANOR LEWIS**

9:00 AM

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION W/ IAEA FILED ON 3/1/2024 BY
PATRICIA CARLSON

-- See also Line # 7--

Need:

1. Appearances to report status, including settlement
2. Proof of Publication. PrC § 8120
3. Verified declaration by petitioner to include names and dates of death of decedent's parents. LR 7.151(d)
4. Order for Probate Form DE-140

Notes:

- a. Spanish Interpreter is requested.
- b. Objection filed by Raymond Patton 10/25/24.

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4B.

9:00 AM

P24-00395

ESTATE OF: ELEANOR LEWIS

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH AIEA FILED BY RAYMOND PATTON ON 4-11-25

Need:

1. Appearances to report status, including settlement
2. Proof of Publication with will advisement. Petition requests admission of will and Proof of Publication filed 06/10/25 does not include language that will be admitted. PrC § 8120
3. Verified declaration by petitioner to add date of death of predeceased son Rene Pesqueira. LR 7.151(d)
4. Lodge Original Will (w/legal process). PrC § 8200
5. Order for Probate Form DE-140

If Original Will cannot be found, will also need:

6. Evidence to overcome presumption of revocation by the fact that the originals cannot be located. PrC § 6124
7. Proof of mailing notice that will/codicil is lost. PrC § 1202
8. Proof of Subscribing Witness Form DE-131. PrC § 8220.
9. Proposed Order for Probate Form DE-140 with copy of Will attached, if lost will is to be admitted

Note: Will lodged 8-19-2025 is dated 2-8-2008. Petition requests admission of will dated 7-13-2019.

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6. 9:00 AM	P24-00664 MATTER OF: MOORE LIVING TRUST DATED NOVEMBER 7, 2007 HEARING IN RE: COMPLIANCE HEARING ON: PETITION FOR DAMAGES, ATTORNEYS FEES AND COSTS FOR FAILURE TO PROVIDE REQUIRED NOTIFICATION, A REPORT OF THE TRUST AND ITS ADMINISTRATION; ACCOUNTING FILED ON 4/16/2024 BY CHERYL G. MOORE & OSC FOR IDA MOORE Need appearance by Ida Moore to show cause why she should not be sanctioned for failure to appear 9-2-2025, pursuant to 4-15-2025 minute order. Ida Moore was ordered to appear 4-15-2025 to report status of filing an accounting, pursuant to 12-3-2024 minute order. The Court will consider sanctions of up to \$1,500.00, pursuant to CCP § 177.5 for failure to appear 4-15-2025. Note: Per 12-3-2024 minute order, court ordered an accounting for the period 11-17-2011 through 10-1-2025 to be filed by 2-19-2025. None has been filed.
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7A.

9:00 AM

P24-01295

MATTER OF: THE LEWIS TRUST AGREEMENT

HEARING IN RE: PETITION FOR DETERMINATION OF BENEFICIARIES UNDER TRUST PURSUANT TO
PROBATE CODE SECTION 17200 AND SECTION 21380(A) FILED ON 8/1/2024 BY MILJANA MIJANOVIC

-- See also Line # 4--

Petitioner still must do the following:

1. Appear at the hearing to report status, including settlement
2. File a verified declaration to state the names and addresses of all persons entitled to notice
3. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice, and file a Proof of Service with court.
4. Submit a proposed Order

Note: Spanish Interpreter is requested.

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7B. 9:00 AM	P24-01295 HEARING IN RE: PETITION FOR INSTRUCTIONS TO CONFIRM TRUSTEE FILED ON 8/2/24 BY RAYMOND PATTON	MATTER OF: THE LEWIS TRUST AGREEMENT
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Need:

1. Appearances to report status, including settlement
2. Proposed Order

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7C.

9:00 AM

P24-01295

MATTER OF: THE LEWIS TRUST AGREEMENT

HEARING IN RE: PETITION TO COMPEL INVENTORY AND ACCOUNTING; REMOVAL OF SUCCESSOR TRUSTEE AND APPT OF FIDUCIARY; FEES AND COSTS FILED ON 08/05/2024 BY PATRICIA T. CARLSON

Need:

1. Appearances to report status, including settlement
2. Verified declaration to include the names and current addresses of all persons entitled to notice
3. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203
4. Proposed Order

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10. **P24-01949** **ESTATE OF PEGGY JO MCCARTY**
9:00 AM HEARING IN RE: PETITION FOR PROBATE OF LOST WILL AND FOR LETTERS OF ADMINISTRATION WITH
WILL ANNEXED FILED BY MALIK COOPER ON 11/4/24

Petitioner, son, still must do the following:

1. Appear at the hearing

Note: If granted, bond will be fixed at \$246,000.00. Minor beneficiary Enzo Cooper cannot waive bond.

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11A.	P24-02187	MATTER OF: LAURENCE O. AND JOANN M. CLARK FAMILY TRUST, DATED MAY 10, 2000, AS AMENDED-SURVIVOR'S TRUST
9:00 AM	HEARING IN RE: PETITION FOR INSTRUCTIONS TO 1) DETERMINE CONSTRUCTION OF TRUST INSTRUMENT AND 2) DIRECT THE TRUSTEE TO STAY DISTRIBUTION UNTIL RESOLUTION OF THE REFORMATION PETITION FILED ON 12/10/24 BY ROGER CLARK	
	Need appearances	
	Notes: 1. Per 9-2-2025 minute order, court ordered objections and/or responses to be filed by 1-8-2026. 2. Trustee Larry Clark's Response filed 8-27-2025.	

11B.	P24-02187	MATTER OF: LAURENCE O. AND JOANN M. CLARK FAMILY TRUST, DATED MAY 10, 2000, AS AMENDED-SURVIVOR'S TRUST
9:00 AM	HEARING IN RE: AMENDMENT AND SUPPLEMENT TO ROGER CLARK'S PETITION FOR INSTRUCTIONS FILED BY ROGER CLARK ON 4/11/2025	
	See Line 11A	
	Need appearances	

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13. **P25-01541** **MATTER OF: THE DOROTHY ELLEN HUSSEY REVOCABLE TRUST, 10/8/08**
9:00 AM HEARING IN RE: PETITION FOR AN ORDER TO CONFIRM VALIDITY OF TRUST; CONFIRM TRUSTEE; AND
CONFIRM ASSET TO TRUST FILED ON 09/02/25 BY RICHARD EUGENE HUSSEY

Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

Note: Prayer at page 6 requests an order that all “beneficial interest to be subsequently transferred to Richard Eugene Hussey.”